

**SUBSTITUTE FOR
HOUSE BILL NO. 4593**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending section 16608 (MCL 333.16608), as amended by 2021 PA
12.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 16608. (1) The board may issue a health profession
2 specialty field license to a dentist who has advanced training
3 beyond that required for initial licensure and who has demonstrated
4 competency through examination or other evaluative processes in 1
5 or more of the following health profession specialty fields:

6 (a) Prosthodontics, endodontics, oral and maxillofacial
7 surgery, orthodontics, pediatric dentistry, periodontics, or oral
8 pathology.



1 (b) Beginning September 1, 2022, oral medicine, orofacial
2 pain, dental public health, oral and maxillofacial radiology, or
3 dental anesthesiology.

4 (2) A dentist who held a health profession specialty
5 certification in 1 or more of the health profession specialty
6 fields listed in subsection (1)(a) on December 23, 2002 is
7 considered to hold a health profession specialty field license on
8 that date in each of those health profession specialty fields and
9 may obtain renewal of each health profession specialty field
10 license on the expiration date of the specialty certification.

11 (3) A health profession specialty field license issued under
12 this section must be renewed concurrently with the license to
13 practice dentistry.

14 (4) This section does not prohibit a dentist who has not been
15 issued a health profession specialty field license under this
16 section from performing services in 1 or more of the health
17 profession specialty fields listed in subsection (1).

18 **(5) Beginning 90 days after the effective date of the**
19 **amendatory act that added this subsection, in addition to the**
20 **prohibitions in section 16261, a dentist who has not been issued a**
21 **health profession specialty field license under this section shall**
22 **not do any of the following:**

23 **(a) Announce, represent, advertise, or otherwise hold oneself**
24 **out to the public that the dentist is a dental specialist.**

25 **(b) Announce, represent, advertise, or otherwise hold oneself**
26 **out to the public that the dentist specializes in an area under the**
27 **practice of dentistry for which a health profession specialty field**
28 **license under this section does not exist.**

29 **(c) Advertise or otherwise promote to the public a service in**



1 1 or more of the health profession specialty fields listed in
2 subsection (1) in a manner that would lead the public to reasonably
3 conclude that the dentist has advanced training or education in the
4 health profession specialty field.

5 (6) It is not a defense to a violation of subsection (5) that
6 the dentist did not use a title for a health profession specialty
7 field license that is protected under section 16605 or that the
8 dentist provided a disclaimer that the dentist does not hold a
9 health profession specialty field license.

10 (7) ~~(5)~~—For purposes of the administration of the general
11 rules of the board in the Michigan Administrative Code, a reference
12 to specialty certification is a reference to a health profession
13 specialty field license.

14 Enacting section 1. This amendatory act does not take effect
15 unless House Bill No. 4594 of the 103rd Legislature is enacted into
16 law.